

Ashneel Kumar v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 18 January 2020 · Writ-C No. 1634 of 2020 · Writ-C No. 1634 of 2020 · **Writ disposed of. Petitioner directed to appear before the Executive Engineer with objections; speaking final order within four weeks; coercive action stayed for seven weeks; liberty to appeal under section 127.**

HEADNOTE

Without examining alleged want of hearing or breach of the U.P. Electricity Supply Code, 2005, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive recovery for seven weeks or until disposal of the objection, and left the consumer, if aggrieved by that final order, to appeal under section 127 of the Electricity Act, 2003. Default in appearance revives the recovery citation.

FACTUAL SUMMARY

The petitioner, Ashneel Kumar, challenged a recovery notice dated 19 November 2019 issued by the Executive Engineer (respondent no. 2), seeking certiorari to quash the notice, mandamus to restore his electricity connection, and an interim restraint on coercive recovery. He alleged that the respondents were taking coercive action without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. The electricity department was represented. The High Court did not examine those allegations on merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation-to-speaking-order-then-section-127-appeal

HOLDING

On a writ to quash a recovery notice and restore supply, the Court, taking a lenient view and without deciding alleged non-compliance with the U.P. Electricity Supply Code, 2005, directed the consumer to appear before the Executive Engineer with objections and evidence; the Executive Engineer shall pass a speaking and reasoned final order within four weeks; no coercive action for seven weeks or until disposal of the objection, whichever is earlier; if aggrieved by the final order, the consumer may appeal under section 127 of the Electricity Act, 2003; default in appearance revives the recovery citation. Writ disposed of. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to pass a speaking final order on the consumer's objection to the recovery notice, the Court left it open to the consumer, if aggrieved, to appeal under section 127 rather than deciding the recovery or restoration on writ merits. ¶ 1

alternative-remedy-section-127-appeal Liberty was expressly reserved to file an appeal before the concerned authority under section 127 of the Electricity Act, 2003 in accordance with law if the consumer is aggrieved by the Executive Engineer's final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICE DATED 19 NOVEMBER 2019 WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

¶ 1

NOT DECIDED — QUASHING OF THE RECOVERY NOTICE AND RESTORATION OF THE ELECTRICITY CONNECTION

Certiorari and mandamus were prayed; the Court neither granted nor refused those reliefs on merits. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.